

26STCV17285 26STCV17285

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 26STCV17285 Hearing Date: September 23, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV17285

RODNEY

ROUZAN vs FELL LAW, P.C.

September

23, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT.

RULING:

The Court grants the Motion.

The proposed, corrected Second Amended Complaint may be served and filed as a separate document, on or before October 1, 2026.

Plaintiff to give notice.

I.

BACKGROUND

On August 21, 2026, RODNEY ROUZAN (Plaintiff) filed a Motion for Leave to File a Second Amended Complaint (SAC), against FELL LAW, P.C. and BIBIANNE FELL (Defendants), listing Causes of Action for:

1.

PROFESSIONAL NEGLIGENCE / LEGAL MALPRACTICE;

2.

BREACH OF FIDUCIARY DUTY;

3.

BREACH OF WRITTEN CONTRACT;

4.

CONVERSION / FAILURE TO RETURN CLIENT PROPERTY;

5.

CONSTRUCTIVE FRAUD / CONCEALMENT; and

6.

DECLARATORY RELIEF.

(Motion for Leave, Exhibit

1.)

Plaintiff alleges that Defendants

committed Legal Malpractice in representing him in the underlying case, Rouzan v. City of Los Angeles, et al., Los Angeles Superior Court Case number 24STCV03054, including by not presenting a timely Government Claim regarding wrongful employment termination of Plaintiff, a Los Angeles Airport Police officer, done in retaliation for whistleblowing.

On September 9, 2026,
Plaintiff filed some corrections to the Motion and proposed SAC.

On September 10, 2026, Defendants
filed their Opposition, on bases including a need for a finalized SAC, inexcusable delay, a changed litigation strategy, the effect of verified allegations, and pending-demurrer avoidance.

II. LEGAL STANDARD

Code of Civil Procedure
section 473, subdivision (a)(1) allows courts “in furtherance of justice” to
“allow a party to amend any pleading ... in any ... respect”, which is reviewed
for abuse of discretion and requires courts to consider factors including the
conduct of moving parties and belated presentations of amendments without a
showing of excuse. (*Emerald Bay Cmty. Assn. v. Golden Eagle Ins. Corp.*
(2005) 130 Cal.App.4th 1078, 1097.)

Where a pleading
contradicts, or omits facts pled in, prior complaints, judges have discretion
to take judicial notice of the earlier allegations and disregard inconsistent
ones, absent the pleader’s satisfactory explanation. (*State of Cal. ex rel. Metz v. CCC Information Services, Inc.* (2007)
149 Cal.App.4th 402, 412; *Holland v.*
Morse Diesel Internat. (2001) 86 Cal.App.4th 1443, 1447; *Berman v. Bromberg* (1997) 56 Cal.App.4th
936, 946 [perceiving no inconsistency or sham pleading].) The rule that
pleaders cannot without explanation omit allegations, “does not mean that every
word dropped in a pleading becomes a binding admission by which the pleader is
forever bound.” (*Schmidlin v. City of*
Palo Alto (2007) 157 Cal.App.4th 728, 755.) Courts
may overlook harmless procedural errors made in the documents or proceedings
that do not affect substantial rights of parties. (*Code Civ. Proc.*, § 475; *Morgan v. AT & T Wireless Services, Inc.*
(2009) 177 Cal.App.4th 1235, 1252; *Reedy*
v. Bussell (2007) 148 Cal.App.4th 1272, 1289 [“Procedural defects which do

not affect the substantial rights of the parties do not constitute reversible error....”]; *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 283 [court is bound to ignore any “defect ... in the pleadings or proceedings which, in the opinion of said court, does not affect the substantial rights of the parties.”] .)

“The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court’s denial of leave to amend are rare.” (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.)

The principles that self-represented litigants are entitled to no greater rights than represented litigants, and trial courts must expeditiously process civil cases, “must yield to the even greater principles of providing in propria persona litigants with meaningful access to the courts and of deciding bona fide civil actions on their merits.” (*Apollo v. Gyaami* (2008) 167 Cal.App.4th 1468, 1487.) In light of increasing numbers of self-represented litigants, there is a growing trend in our courts to be cognizant of their ability to access the courts, in conducting court business and developing rules and procedures. (*Garcia v. Santana* (2009) 174 Cal.App.4th 464, 473, fn.6.) Judges who preside over cases with self-represented litigants must manage the courtroom in a manner that provides all litigants an opportunity to have their matters adjudicated fairly. (Code of Judicial Ethics, Canon 3B(8).)

III.

ANALYSIS

Plaintiff explains that the proposed SAC is to respond to objections that Defendants raised recently during meeting and conferring.

Defendants advocate denying the Motion, on bases including:

1.

The proposed SAC has not been finalized

according to the applicable rule. (Cal. Rules of Court, rule 3.1324).

2.

Defendants should not have to reconstruct the proposed complaint from comparisons, a location table, errata, and future pleading.

3.

Some facts were not actually discovered in August 2026, but before. For example, Plaintiff only vaguely states that new section 1017 allegations arose from “ ‘facts developed in the writ proceeding’ ” and Defendants’ June 2025 correspondence.

4.

Plaintiff should clearly explain materially changing damages theory allegations.

5.

Reframing the pleading may be Plaintiff’s attempt to answer Defendants’ causation and damages objections.

6.

There is apparent, erroneous AI-assisted drafting and citation verification with the Motion.

7.

Plaintiff’s self-represented status does not exempt him from applicable procedural rules.

8.

Any ruling should preserve Defendants’ right to demur and move to strike on the merits.

Importantly, a newly raised argument or court ruling may be justification for delay in moving for leave to amend. (Cf. *Foundation for Taxpayer and Consumer Rights v. Nextel Communications, Inc.* (2006) 143 Cal.App.4th 131, 136 [“The argument fails because the FTCTCR had no reason to amend its complaint until Nextel sought to apply Proposition 64 to this case.”].)

“ ‘ “[I]t is irrelevant

that new legal theories are introduced as long as the proposed amendments

'relate to the same general set of facts...." ' ” (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.)

In considering whether

there was unjustified delay as to a motion for leave to file an amended

pleading, the court should consider whether the party, “was not diligent in

offering the amendment after knowledge of the facts....” (Solit v. Tokai Bank (1999) 68 Cal.App.4th 1435, 1448.) Absent some

kind of disadvantage from delay in seeking to amend a complaint, such as faded

memories or lost evidence, delay causing the need to defend, in and of itself,

is not a valid reason to deny amendment. (Jo Redland Trust, U.A.D. 4-6-05 v.

CIT Bank, N.A. (2023) 92 Cal.App.5th 142, 168.)

Here, Plaintiff justifies

the proposed SAC's new theories and other changes, based upon learning defense

positions during relatively recent meeting and conferring. And Defendants have confirmed

that occurrence, by a declaration stating: “After reviewing the First Amended

Complaint (“FAC”), on July 24, 2026, I sent Plaintiff a detailed

meet-and-confer letter identifying Defendants' anticipated grounds for demurrer

and motion to strike....” (Opposition, p. 19 (Joshua D. Cahn Declaration), ¶ 2.)

IV.

CONCLUSION

Therefore, the Court grants

the Motion.

Additionally, should

Plaintiff file the SAC, the Court requests Defendants consider promptly taking off

calendar the Demurrer and Motion to Strike scheduled for hearing on October 15,

2026. Judges disregard previously filed complaints after an amended pleading

has been filed. (Berman v. Bromberg

(1997) 56 Cal.App.4th 936, 945-946.) An amended complaint that makes

substantive changes supersedes the

original. (E.g., Carrasco v. Craft (1985) 164 Cal.App.3d

796, 808-809.)